What would Ormsby-Gore have said if he had simply been asked for his reaction? What would he have said if he had consulted London? Macmillan subsequently told his ambassador that he was doubtful about the blockade and had been minded to express that to the President. The Prime Minister felt that Kennedy had to decide 'whether he wants *a coup de main* [direct assault], or face a conference where Berlin, nuclear disarmament and many other issues will have to be discussed'.[60] Macmillan warned Ormsby-Gore that he could not allow things to escalate into a war without calling a conference or something similar himself.

When Macmillan sent a formal response to Kennedy, he did so without Ormsby-Gore's account(s) of his Sunday meeting with JFK. The Prime Minister felt his letter was 'a pretty good document' that was not altogether easy to draft.[61] Kennedy had read it out to the National Security Council on 22 October and at a fractious meeting with Congressional leaders shortly before his televised address. The President told the NSC that Macmillan's message 'contained the best argument for taking no action. What we now need are strong arguments to explain why we have to act as we are acting.'[62]

Macmillan also raised the legality of the blockade. ExComm discussed whether a declaration of war would be needed. The legal issue was politically sensitive, so it was decided to use the term 'quarantine' rather than blockade. Yet the legal issues were considered primarily in the context of managing and mobilising world opinion. There was no suggestion that if the action was not considered legal that it should not be pursued.

The legal and political strategy adopted was to persuade the Organisation of American States to support the blockade. Under the terms of the Rio Treaty, collective action was authorised in the case of armed attack or 'If the inviolability or the integrity of the territory or the sovereignty or political independence of any American state should be affected by an aggression which is not an armed attack … or by any other fact or situation which might endanger the peace of America.'[63] A two-thirds majority of OAS members was needed. Robert Kennedy told the National Security Council on 22 October that the OAS vote was necessary for the legality of the blockade (though this view was not shared by Dean Rusk). The